

25SMCV06295 25SMCV06295

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-06-23

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Case Number: 25SMCV06295 Hearing Date: June 23, 2026 Dept: M

CASE NAME: Manchester

Development LP, v. Fairchild

CASE NO.: 25SMCV06295

MOTION: Motion

to Vacate Dismissal

HEARING DATE: 6/23/2026

Legal

Standard

Relief under Code of Civil Procedure section 473(b)

is either discretionary or mandatory. A motion for mandatory relief must be

made no more than six months after entry of judgment and be accompanied by an

attorney's sworn affidavit attesting to the attorney's "mistake, inadvertence,

surprise or neglect." (CCP § 473(b).) The attorney affidavit of fault must

contain a "straight forward admission of fault." (State Farm Fire &

Casualty Co. v. Pietak (2001) 90 Cal.App.4th 600, 610.) But it need not contain an explanation of the reasons for the attorney's mistake, inadvertence surprise or neglect. (Martin Potts & Assocs., Inc. v. Corsair, LLC (2016) 244 Cal.App.4th 432, 438-441.) Relief must be granted "unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Ibid.) If mandatory relief is granted, the court must "direct the attorney to pay reasonable compensatory legal fees and costs" to the opposing counsel or parties. (CCP § 473(b).) A motion for relief under section 473(b) "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted. . ." (CCP § 473(b).) However, this requirement is not jurisdictional; substantial compliance may suffice. (Carmel, Ltd. v. Tavoussi (2009) 175 Cal.App.4th 393, 403 [finding substantial compliance where counsel offered proposed answer at motion hearing rather than serving it with moving papers].)

Analysis

Plaintiff Manchester Development LP moves to vacate and set aside the dismissal without prejudice entered on April 6, 2026. Plaintiff

demonstrates grounds for mandatory relief. Counsel explains that, on the morning of April 6, 2026, he was also appearing in departments S, P, and J of the Santa Monica Superior Courthouse and inadvertently missed the trial call in Department M in this case. (Greenwood Decl., ¶ 8.)

Accordingly, the motion is GRANTED.